

Decided On: 08.09.2025 vs Sh. Parveen Kumar on 8 September, 2025

Author: Ajay Mohan Goel

Bench: Ajay Mohan Goel

2025:HHC:30578

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

CMPMO No.309 of 2018

Decided on: 08.09.2025

Smt. Salita Devi		...	Petitioner
	Versus		
Sh. Parveen Kumar		...	Respondent

Coram
Hon'ble Mr. Justice Ajay Mohan Goel, Judge.
Whether approved for reporting?1

For the petitioner	:	Mr. Sandeep Dutta, Advocate, vice
		Ms. Bhavna Dutta, Advocate and
	r	Ms. Nisha Galot, Legal Aid Counsel.
For the respondent	:	Respondent ex parte.

Ajay Mohan Goel, Judge (Oral)

This is a Legal Aid matter. Mr. Sandeep Dutta, learned Counsel, appearing for the petitioner submits that for some unavoidable circumstances, Ms. Bhavna Dutta, learned original Counsel for the

petitioner is not available.

2. In these circumstances, Ms. Nisha Galot, learned Counsel, who is present in the Court, stands appointed as a Legal Aid Counsel for the petitioner. The case was passed over to enable the learned Counsel to assist the Court.

3. As per report of the Registry, sole respondent is residing somewhere in Nalagarh and his mother refused to accept the notice. In light of the fact that notice was served upon an adult member of Whether reporters of the local papers may be allowed to see the judgment?

2025:HHC:30578 the family, yet none has put in appearance on behalf of the respondent today, as there is deemed service of the respondent, he is .

ordered to be proceeded against ex parte.

4. By way of this petition, filed under Section 24 of the Code of Civil Procedure, the petitioner has prayed for transfer of the proceedings which have been initiated by the respondent against her under Section 13 of the Hindu Marriage Act.

5. Learned Legal Aid Counsel submits that the respondent has initiated the proceedings against the petitioner at Karsog. She further submits that the petitioner is presently residing at village Hanoh and is making her two ends meet by taking temporary assignments under Mahatma Gandhi National Rural Employment Guarantee Act (MNREGA) etc. The Court also has further been informed that the petitioner has a 20 years old son who is dependent upon her and she has recently lost her daughter. Learned Counsel submits that in these circumstances is is extremely difficult for the petitioner to defend herself at Karson in the proceedings which have been initiated against her by the respondent.

6. Having heard learned Counsel for the petitioner and taking into consideration that there is no opposition to the contentions made on behalf of the petitioner, this petition is 2025:HHC:30578 disposed of by ordering that Case No HMA 52 of 2017,, titled Parveen Kumar Vs. Salita Devi, pending in the Court of learned .

Additional District Judge, Mandi, District Mandi, H.P., Camp at Karsog, be transferred to the Court of learned District Judge, Hamirpur, H.P. Pending miscellaneous application(s), if any also stand disposed of accordingly.

September 08, 2025
(Rishi)

r

to

(Ajay Mohan Goel)
Judge

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